

June 29, 2026
Dept. 9
Probate Tentative Rulings

11.	25PR0182	ESTATE OF AMALIA SCHNEIDER
FINAL DISTRIBUTION		

Letters of Administration/Letters Testamentary were issued on **February 26, 2026**, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on **May 28, 2026**.

Waivers of Account **as well as Waivers of Notice** were executed by **all** the heirs entitled to distributions under the estate.

Proof of Service of Notice of the hearing on the Petition was filed on **June 12, 2026**. No one has filed a request for special notice in this proceeding.

The proposed distribution of the estate includes **specifics of distribution**.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

1. That no federal or California estate taxes are payable or that they have been paid;
2. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

The Petition requests:

1. Notice of the Petition has been given as required by law;
2. The administration of the estate be brought to a close without the requirement of an accounting;
3. The First and Final Account filed with the Petition be settled, allowed and approved;
4. All acts, transactions and proceedings of the Administrator be ratified, confirmed and approved;
5. The Administrator be authorized to pay statutory attorney fees in the amount of \$21,624.14 and , plus \$130.09.00 for costs advanced to the estate;
6. That waiver of statutory compensation to the personal representative be approved

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7. Approval of distribution of the estate to the persons entitled to it pursuant to the Petition for Final Distribution, **specifics of distribution.**
8. All creditor claims not properly filed with the court and served on the estate be barred;
9. Distribution of the estate in Petitioner's hands and any other property of the estate not now known or later discovered be distributed to the beneficiaries as set forth in the Petition.
10. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petition may be discharged and released from all liability that may be incurred thereafter.**

TENTATIVE RULING #11: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, JUNE 28, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.